



Notification Waiver Determination

Jaybro – Fastway Civil Supplies

Acquisition	Jaybro Group Pty Ltd (Jaybro) applied for a notification waiver in respect of its proposed acquisition of all of the business and assets of Fastway Civil Supplies Pty Ltd (Fastway), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	24 September 2026

Parties to the Acquisition	Jaybro is majority owned by Quadrant Private Equity No. 7A (of which the trustee entity is QPE No. 7A Pty Limited) (Quadrant Fund 7). Quadrant Fund 7 completed its acquisition of Jaybro from CPE Capital on 28 February 2022. Quadrant Fund 7 is a fund of Quadrant Private Equity. The acquirer, Jaybro, is an Australian incorporated proprietary company that specialises in the supply of infrastructure services, materials and consumables to civil and construction contractors. Through its Jaybro and Cadia brands, Jaybro supplies a range of pipe products used in civil construction and related civil consumables, with a particular focus on agricultural and stormwater drainage pipes. The target, Fastway, is an Australian supplier of primarily electrical and telecommunications pipes, as well as associated civil consumable products. It supplies civil products to a range of industries in Australia, including the road, rail, drainage, boring, electrical and communications industries. Fastway operates in Australia, with its head office in Victoria. Jaybro (through its Jaybro and Cadia brand) and Fastway both supply pipes used for agricultural and stormwater drainage purposes (A&S pipes) and pipes and conduits used for electrical and telecommunications applications (E&T pipes). Jaybro and Fastway also provide a range of civil consumables such as pipe fittings and connections, safety tape, pedestrian bollards, traffic cones, safety mesh fence, tape and rope.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act).

	Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given: a. the parties' combined share in the supply of A&S pipes, E&T pipes, and civil consumables in Australia is low and the increase in share of supply arising from the Acquisition would be small b. there are alternative suppliers of A&S pipes, E&T pipes, and civil consumables in Australia c. there is a low risk of foreclosure or other concerning vertical or conglomerate effects resulting from exclusionary conduct, bundling or tying post-acquisition. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act